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Case Number: 25NWCV00286 Hearing Date: September 28, 2026 Dept: D

ARACELI ROMAN, ET AL. V. LUIS

MOLINA CESMA, ET AL.

CASE NO.: 25NWCV00286

HEARING: September 28, 2026 @ 9:30 a.m.

#16

TENTATIVE ORDER

City of Huntington Park's

demurrer to the third cause of action is SUSTAINED with leave to amend.

Plaintiff shall file a second

amended complaint within 30 days of this ruling.

Moving party to give notice.

Defendant City of Huntington Park

demurs to Plaintiff's third cause of action for dangerous condition of

public property for failing to plead facts constituting a cause of action.

Specifically, the claim lacks facts showing the existence of a dangerous

condition, notice, and creation of a dangerous condition under Gov. Code §§ 835 and 835.2 for liability to

attach. (Code Civ. Proc. § 430.10(e).)

Background

This is an action regarding a motor vehicle-pedestrian accident that occurred on October 30, 2023. On January 24, 2025, Plaintiff Araceli Roman, as Guardian Ad Litem for Samantha Roman, a minor, (Plaintiff) filed this action against Defendants Luis Molina Cesma, Maria Lourdes Cesma Trevino, City of Huntington Park, and Does 1 to 50. The Complaint alleges that Araceli Roman was crossing the street with her granddaughter, Samantha Roman, when Defendant Luis Molina Cesma collided with them while making a left turn. The Complaint alleges the following causes of action: 1) Motor Vehicle Negligence (against all Defendants), 2) Premises Liability (against Defendant City of Huntington Park), and 3) General Negligence (against all Defendants).

On June 9, 2025, Defendant City of Huntington Park (City) filed an answer.

On July 14, 2025, Plaintiff filed a motion for leave to file a first amended complaint which the court DENIED.

On June 29, 2026, City filed a stipulation and proposed order permitting Plaintiff leave to file a first amended complaint which the court GRANTED.

On July 30, 2026, Plaintiff filed the operative first amended complaint (FAC) with three causes of action for: 1) Negligence – Motor Vehicle (against Defendant Cesma), 2) Negligent Entrustment (against Defendant Trevino), and 3) Dangerous Condition of Public Property [Gov. Code § 835] (against City).

On September 1, 2026, City filed the instant demurrer to the FAC. On September 15, 2026, Plaintiff filed an untimely opposition. On September 18, 2026, City filed a timely reply.

Legal Standard

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. *¿* (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes

the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Plaintiff is only required to allege ultimate facts, not evidentiary facts. (See Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212 ["the complaint should set forth the ultimate facts constituting the cause of action, not the evidence by which plaintiff proposes to prove those facts"]; 1 Cal. Affirmative Def. § 10:2 (2d ed.) [allegations of agency, course and scope of employment, etc. qualify as ultimate facts].) Plaintiff's allegations must be accepted as true on demurrer. (See Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919, 924 ["For purposes of reviewing a demurrer, we accept the truth of material facts properly pleaded in the operative complaint"].)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a) requires the moving party to meet and confer "in person, by video conference, or by telephone" in an attempt to resolve a demurrer's deficiencies five days before the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).)

Here, the parties met and conferred telephonically on August 11, 2026. (Declaration of Jeremy M. Forsyth ¶ 3.) This requirement is therefore met.

Request for Judicial Notice

City requests the court to take
judicial notice of the following documents:

1. Plaintiff's
complaint filed January 24, 2025;
2. Plaintiff's
response to City's special interrogatory No. 34;
3. Plaintiff's
response to City's form interrogatory No. 17.1.

Plaintiff requests the court to
take judicial notice of the following documents:

1. Joint
stipulation for leave to file first amended complaint filed June 12, 2026.

The Court may take judicial
notice of "[f]acts and propositions that are not reasonably subject to dispute
and are capable of immediate and accurate determination by resort to sources of
reasonably indisputable accuracy." (Evid. Code, § 452, subd. (h).)
"The existence and contents of a written agreement may be the proper subject of
judicial notice if there is no factual dispute that the document is genuine and
accurate." (Chacon v. Union Pacific Railroad (2020) 56 Cal.App.5th
565, 572; see Performance Plastering v. Richmond Am. Homes of Calif., Inc.
(2007) 153 Cal.App.4th 659, 666 n.2 [judicial notice of settlement agreements
and their contents proper in demurrer because there was no factual dispute
concerning their contents].)

The court GRANTS City's request
for judicial notice of Plaintiff's complaint and GRANTS Plaintiff's request for
judicial notice of the joint stipulation for leave to file first amended
complaint. (Evid. Code § 452(d).)
The court DENIES City's request for judicial notice of the discovery responses
as immaterial to this ruling.

Procedural Issues

City substantially complied with Cal.

Rules of Court, rule 3.1320(a) because their notice states each ground for demurrer despite appearing in the notice and not as a separate page.

Plaintiff's opposition is one day

late. (Code Civ. Proc. § 1005(b).)

However, the court exercises its discretion to consider it since City still timely filed their reply.

Analysis

City contends the FAC fails to

state a claim against them for six reasons: 1) Plaintiff failed to meet the heightened pleading standard of alleging the dangerous condition claim against City; 2) the sham pleading doctrine bars Plaintiff's "new" allegations that the deficiencies included non-functioning rectangular rapid flash beacon warning devices and pedestrian push-button actuators; 3) City is immune from liability for failure to provide crossing equipment under Gov. Code § 830.4; 4) Plaintiff failed to adequately allege that the City had notice of a dangerous condition at the time of injury; 5) Plaintiff failed to allege that City is liable for creating a dangerous condition; and 6) Plaintiff's conclusory allegations do not support causation between the dangerous condition and Defendant Molina's driving.

In opposition, Plaintiff argues that

City improperly asks the court to resolve factual disputes at this stage, City possesses the maintenance records so less particularity is required as to those allegations, Plaintiff sufficiently identified the dangerous condition for the pleading stage, that the immunities articulated in Gov. Code § 830.4 do not apply here, the sham pleading doctrine does not apply or fully dispose of the claim. Plaintiff also argues that she pleads a dangerous condition in such a way as to foreseeably endanger those using the property or the danger arises from the interrelationship of its structural or natural features. Finally, she argues she plead City's actual or constructive notice three ways, which in turn defeats City's argument that Plaintiff must also plead they created the dangerous condition.

The City replies that Plaintiff

confirmed the FAC is deficient via counsel's declarations, the alleged malfunction is still unconnected to the collision, there are no facts that a physical defect in City property increased or intensified the danger of third

party accidents, there are no allegations the City's property created a trap by design, there are still no allegations of actual or constructive knowledge, no allegations City created the condition, and no allegations of causal connection. They add that they do challenge the entire claim, not a portion of it, and leave to amend would not cure these defects.

A claim against a public entity under Gov. Code § 835 requires the plaintiff to plead: "(1) a dangerous condition existed on the public property at the time of the injury;" "(2) the condition proximately caused the injury;" "(3) the condition created a reasonably foreseeable risk of the kind of injury sustained;" and "(4) the public entity had actual or constructive notice of the dangerous condition of the property in sufficient time to have taken measures to protect against it." (*Brenner v. City of El Cajon* (2003) 113 Cal.App.4th 434, 439 (*Brenner*).)

"Dangerous condition" means a condition of property that creates a substantial...risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used." (Gov. Code, § 830.) "With respect to public streets, courts have observed "any property can be dangerous if used in a sufficiently improper manner. For this reason, a public entity is only required to provide roads that are safe for reasonably foreseeable careful use. [Citation.]" (*Sun v. City of Oakland* (2008) 166 Cal.App.4th 1177, 1183, quoting *Chowdhury v. City of Los Angeles* (1995) 38 Cal.App.4th 1187, 1196.) "A dangerous condition exists when public property 'is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,' or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users." (*Hedayatzadeh v. City of Del Mar* (2020) 44 Cal.App.5th 555, 562.)

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Particularity of Allegations

"[A] claim alleging a dangerous condition [against a public entity] may not rely on generalized allegations [citation] but must specify in what manner the condition constituted a dangerous condition." (*Brenner, supra*, 113 Cal.App.4th at p. 439-440.)

After reviewing the FAC,
Plaintiff insufficiently alleged the dangerous condition with the requisite
particularity.

Brenner discussed factors
to determine whether a crosswalk is a dangerous condition at the pleadings
stage. The first was an increased number of pedestrians coupled with
allegations of “physical characteristics” of the crossing that “created a
substantial risk that a driver using due care while traveling along [the road]
would be unable to stop for pedestrians who were using due care while crossing”
at the intersection. (Brenner, *supra*, 113 Cal.App.4th at p. 440.) The
second was allegation of “some peculiar condition that makes it unsafe to cross
[the crosswalk] even when motorists and pedestrians are exercising due care.” (*Id.*
at p. 441.)

Here, Plaintiff’s FAC is like Brenner.

Notably absent are allegations of physical characteristics of the intersection
of Live Oak Street and State Street that create a condition such that a driver
using due care would be unable to stop for pedestrians using due care. Instead,
Plaintiff alleges that the intersection was regularly used by children as a
school-route (i.e., increased foot traffic). (FAC ¶¶ 17, 21.) She additionally alleges, generally, a “continuing
pedestrian-safety hazard at this specific location” based on a 2019
vehicle-pedestrian accident and a collision history report. (FAC ¶ 19.) The court is not convinced
this is sufficient under Brenner.^[1]
However, this defect is reasonably capable of curing.

Conclusion

The court SUSTAINS City’s
demurrer with leave to amend.

Plaintiff shall file a second
amended complaint within 30 days of this ruling.

[1]

The court declines to develop the remaining arguments.